
BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

Re:	)	CASE NO. 15-0221
Mental Health Counselor License of	)	
	)	
RACHEL SHUM MCALPIN	)	NOTICE OF HEARING AND
License No. 001581	)	STATEMENT OF CHARGES
Respondent.	)	

COMES NOW the Iowa Board of Behavioral Science ("Board") and files this Notice of Hearing and Statement of Charges against Rachel Shum McAlpin ("Respondent"), 1009 N 6th St., Red Oak, IA 51566, pursuant to Iowa Code sections 17A.12(2), 17A.18(3), and 272C.3(1)"e" (2015), and 645 IAC 11.6. Respondent's license number 001581 to practice as a mental health counselor is currently active through September 30, 2016.

A. TIME, PLACE, AND NATURE OF HEARING

Hearing. A disciplinary contested case hearing shall be held on August 4, 2016, before the Board. The hearing shall begin at 10:00 a.m. and shall be located in the 5th Floor Conference Room #526 at the Lucas State Office Building, 321 E. 12th Street, Des Moines, Iowa 50319.

Answer. Within twenty (20) days of the date you are served this Notice of Hearing and Statement of Charges, you may file an Answer pursuant to 645 IAC 11.12. The Answer should specifically admit, deny, or otherwise answer all allegations contained in sections C and D of this Notice of Hearing and Statement of Charges.

Filing of Pleadings. Pleadings shall be filed with the Board at the following address: Iowa Board of Behavioral Science, Lucas State Office Building, 5th Floor, 321 E. 12th St., Des Moines, Iowa 50319.

Presiding Officer. The Board shall serve as presiding officer, but the Board may request an Administrative Law Judge from the Department of Inspections and Appeals make initial rulings on prehearing matters, and be present to assist and advise the Board at the hearing.

Pre-hearing Conference. Any party may request a prehearing conference in accordance with 645 IAC 11.17 to discuss issues related to the hearing.

Hearing Procedures. The procedural rules governing the conduct of the hearing are found at 645 IAC 11. At the hearing, you may appear personally or be represented by counsel at your own expense. You will be allowed the opportunity to respond to the charges against you, to produce evidence on your behalf on issues of material fact, cross-examine witnesses present at the hearing, and examine and respond to any documents introduced at the hearing. If you need to request an alternative time or date for the hearing, you must comply with the requirements in 645 IAC 11.18. The hearing may be open to the public or closed to the public at your discretion.

Prosecution. The Office of Attorney General is responsible for representing the public interest (the State) in this proceeding. Copies of pleadings should be provided to counsel for the State at the following address:

Laura Steffensmeier
Assistant Attorney General
Iowa Attorney General's Office
2nd Floor, Hoover State Office Building
Des Moines, Iowa 50319

Ms. Steffensmeier can also be reached by phone at (515) 281-6690 or by e-mail at laura.steffensmeier@iowa.gov.

Communications. You may contact the Board office at (515) 281-4413 with questions regarding this notice and other matters relating to these disciplinary proceedings. You may not contact individual Board members in any manner, including by phone, letter, or e-mail, regarding this Notice of Hearing and Statement of Charges. Board members may only receive information about the case when all parties have notice and the opportunity to participate, such as at the hearing or in pleadings you file with the Board office and serve upon all parties in the case.

B. LEGAL AUTHORITY AND JURISDICTION

Jurisdiction. The Board has jurisdiction in this matter pursuant to Iowa Code chapters 17A, 147, 154D, and 272C (2015).

Legal Authority. If any of the allegations against you are founded, the Board has authority to take disciplinary action against you under Iowa Code chapters 147, 154D, and 272C, and 645 IAC 13 and 33.

Default. If you fail to appear at the hearing, the Board may enter a default decision or proceed with the hearing and render a decision in your absence, in accordance with Iowa Code section 17A.12(3) and 645 IAC 11.21.

C. CHARGES

COUNT I

Respondent is charged with revocation, suspension, or other disciplinary action taken by a licensing authority of this state, another state, territory, or country, pursuant to Iowa Code section 147.55(9) and 645 IAC 33.2(14).

COUNT II

Respondent is charged with conviction of a crime related to the profession or occupation of the licensee or the conviction of any crime that would affect the licensee's ability to practice within the profession, pursuant to Iowa Code section 147.55(5) and 645 IAC 33.2(12).

D. FACTUAL CIRCUMSTANCES

1. Respondent was issued Iowa license number 001581 to practice as a mental health counselor on April 25, 2013. Respondent's license is currently active through September 30, 2016.
2. On March 26, 2015, Respondent was convicted of Trespass, Disorderly Conduct—Loud or Raucous Noise, and Disorderly Conduct—Fighting or Violent Behavior, in Page County, Iowa.
3. On July 2, 2015, the State of Nebraska Department of Health and Human Services Division of Public Health filed a Petition for Disciplinary Action against Respondent's Nebraska licenses and certificate to practice as an independent mental health practitioner (license #1246), to practice as a mental health practitioner (license #4238), to practice as a supervised marriage and family therapist (license #49), and to practice as a professional counselor (certificate #2071).
4. On August 26, 2015, the Nebraska Petition for Disciplinary Action was resolved through an Agreed Settlement that suspended Respondent's licenses and certificate for a period of nine months, beginning July 1, 2015.

E. SETTLEMENT

This matter may be resolved by settlement agreement. The procedural rules governing the Board's settlement process are found at 645 IAC 12.1. If you are interested in pursuing settlement in this matter, please contact Assistant Attorney General Laura Steffensmeier at (515) 281-6690.

F. FINDING OF PROBABLE CAUSE

On this 17th day of June, 2016, the Iowa Board of Behavioral Science found probable cause to file this Notice of Hearing and Statement of Charges.

Emil Orentlicher, M.D., L.M.H.C.

Chairperson
Iowa Board of Behavioral Science

Copy to:

Laura Steffensmeier
Assistant Attorney General
Hoover Building, 2nd Floor
Des Moines, IA 50319

PLEASE NOTE: If you require the assistance of auxiliary aids or services to participate in this matter because of a disability, immediately call 515-281-0233. (If you are hearing impaired, call Relay Iowa TTY at 1-800-735-2942).